CLUB SPORTS CONSULTING GROUP

PROFESSIONAL MANAGEMENT SERVICES AGREEMENT

This Agreement is made by and between CLUB SPORTS CONSULTING GROUP, an Illinois Corporation, (CSCG) and the North Shore Ice Arena, LLC (Owner), hereinafter collectively referred to as the Parties.

Recitals

Owner is the owner of the Ice Arena described in the attached Schedule A, hereinafter referred to as the Facility.

Owner desires to retain a management company to operate and manage the Facility in order to benefit its members, provide the public recreational opportunities, to minimize Owner's operating costs and to maximize the Facility's profit potential.

CSCG operates and manages public ice arena facilities throughout the United States and desires to manage the Facility according to the terms and conditions set forth herein.

Now therefore, in consideration of the mutual promises, terms and conditions contained herein, the parties hereby contract and agree as follows:

1.1

Article 1 Scope of Services

Subject to all policies and guidelines that Owner may establish from time to time and consistent with the operation of other similar facilities, CSCG shall provide the following management services in compliance with all applicable Federal, State and Municipal laws and regulations:

A.

Operation and maintenance of the Facility, its equipment, material and supplies.

B

Fully staff the Facility with its own employees including a full time manager acceptable to **Owner** and supervise their conduct and performance in the operation of **the** Facility.

C.

Collect all gross revenues **generated by** Facility, pay all operating **expenses** of the Facility and maintain all financial records pertaining to the operation of **the** Facility.

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Article 2

Term of Agreement

The initial term of this Agreement shall be as set forth in the attached Schedule A and shall thereafter continue on a year to year term unless terminated, with or without cause, by either Party upon written notice to the Party at least ninety (90) days prior to the end of the then current term or as otherwise provided under Articles 14.

Article 3

Compensati on

Owner shall pay CSCG, as full compensation for the services provided hereunder, the annual fee listed on the attached Schedule A, which fee shall be payable, in advance, in equal monthly installments on the first day of each month during the term hereof. If applicable, the first and last payments shall be prorated.

Article 4

Operation of the Facility

Subject to the policies and guidelines established by **Owner, CSCG** shall be responsible for and have complete authority over the day to day operation of the Facility.

CSCG's operational duties and responsibilities shall include, but not be limited to, opening and closing the Facility, collecting and depositing all gross revenues generated by the Facility, hiring, firing and supervising all employees and contractors, payroll and accounting services, maintenance and repairs, program development and operation, ticketing, marketing and promotions, and janitorial services.

CSCG shall in compliance with **Owner's** policies and guidelines, establish and adjust the days and hours of operation and all rates and charges for the use and rental of the Facility.

Owner shall provide **CSCG** with all office space (in the Facility) and Facility access reasonably necessary for the performance of **CSCG's** operational duties and based upon the prior year performance responsibilities.

Article 5 Operating Budget

CSCG shall, at least thirty (30) days prior to the first day of each calendar or fiscal year, prepare and submit for **Owner's** comment and approval, which approval shall not be unreasonably withheld, a month by month line item budget for the Facility based upon the prior years' actual performance. The budget shall include, but not be limited to, the

following detailed projections:

Gross Revenues by program sources;

5.2

Operating expenses by program;
Administrative and general expenses;
Travel expenses;
Marketing, advertising and promotion expenses;
Energy costs; and
Repairs and maintenance.

It is understood that **CSCG** shall have an approved operating budget effective the first day of each calendar year or fiscal year. **CSCG** shall use all reasonable efforts not to exceed or contract to expend any sums in excess of the projections in the approved operating budget and to provide **Owner** with prior written notice whenever budgeted amounts are projected to be exceeded, which notice shall provide a revised budget

amount.

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Article 6 Bank Accounts

Gross revenues shall include all revenues of every kind derived from the use and operation of the Facility, except those revenues, if any, excluded from the operations listed on Schedule A. Owner shall establish a general account for the deposit of gross revenues and an operating account for the payment of operating expenses. **CSCG** shall be a signatory on the **Owner's** operating account.

CSCG shall collect all gross revenues derived from the use and operation of the Facility and deposit same into **Owner's** general account within one (1) business day of receipt.

Operating expenses shall include all expenses itemized herein and in the operating budget. All operating expenses of the Facility shall be paid by **CSCG** from **Owner's** operating account by the due date thereof, unless instructed otherwise by the **Owner**.

At all times during the term hereof, **Owner** shall be responsible for providing sufficient funds necessary to timely pay all operating expenses. Concurrent with the commencement date of this Agreement, **Owner** shall deposit into the operating account an agreed upon amount for the payment of the Facility's first two (2) months of projected operating expenses. Thereafter, on or before the last business day of each month, **Owner** shall deposit such amounts as required to: 1) pay any incurred operating expenses for the previous month that exceeded projections, and 2) maintain a balance in the operating account sufficient to pay the next two (2) months of projected operating expenses. The amount of each such deposit shall be based on the monthly projections in the approved operating budget and the operating expenses actually incurred. **CSCG** shall submit its adjusted deposit requirements by the 15th day of the preceding month for any subsequent month requirement changes.

Article 7
Accounting

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CSCG shall submit to **Owner,** financial reports for the Facility no less than twenty four (24) hours prior to any regularly scheduled monthly **Owner** board meeting. Such reports shall include a balance sheet and statement of revenues and expenditures (budget to actual) for the current month, year to date and previous year, a statement of cash flows and a copy of the general ledger. **Owner** shall promptly advise **CSCG** of any objection to each monthly report.

Except as otherwise provided herein, **CSCG** shall provide all financial reports required under the terms of this Agreement. **Owner** shall be responsible for and CSCG shall provide any requested information for the preparation and filing of all annual tax returns. **CSCG** shall not be liable for the payment of principal, interest or penalties in the event that **Owner** chooses to have **CSCG** prepare or file the Facility's sales/use/excise returns.

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CSCG shall keep and maintain all financial records used to prepare the Facility's monthly financial statements, which records shall be available for **Owner's** inspection at all reasonable times during normal business hours. **CSCG** shall return all such financial records to **Owner** upon termination of this Agreement and preparation of the final financial statement.

As often as may be reasonably required by **Owner, CSCG** and **Owner** shall together conduct inventories of all assets, equipment and expendable supplies of the Facility.

Article 8 Contract Authority

8.1 **CSCG** shall not without **Owner's** prior approval:

A. Enter into any vendor, service or user/rental occupancy contracts for the Facility that has a term longer than one (1) year.

B. Enter into any contracts for the purchase of goods, equipment or services for the Facility that are in excess of three thousand five hundred dollars ($3,500.00).

8.2 **Owner** shall provide **CSCG** with copies of all existing contracts, if any, for the Facility and **CSCG** shall copy **Owner** on all renewal and new contracts entered into thereafter.

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Article 9

Repairs and Maintenance

All routine and minor repairs, maintenance and equipment servicing shall be the responsibility of **CSCG** as an operating expense of the Facility. **CSCG** shall obtain approval from **Owner**, for all such repairs and maintenance expenses in excess of three thousand five hundred dollars ($3,500.00). **CSCG** shall be responsible for assuring that all repairs, replacements, and maintenance shall be of a quality and class at least equal to the original work.

If **CSCG** is unable to contact **Owner** after using all reasonable efforts to do so, **CSCG** shall make emergency repairs without **Owner's** prior consent. In such an event, **CSCG** shall promptly notify **Owner** and **Owner** shall reimburse **CSCG** for the full amount of such emergency repairs. An emergency repair is defined as the repair of a condition which, if not performed immediately, creates an imminent danger to persons or property and or an unsafe condition at the Facility threatening persons or property.

CSCG, in accordance with the operating budget, shall be responsible for purchasing all expendable supplies for the operation of the Facility.

Article 10

Employees

All personnel employed at the Facility shall be employees of **CSCG** and not of **Owner**. **CSCG** shall, subject to the restraints of the operating budget and consistent with standard industry practices, select the number, function, qualifications, compensation and benefits of its employees and shall control the terms and conditions of their employment. All employee compensation and benefits including payroll, taxes and insurance shall be Facility operating expenses. Compensation shall be paid out of **Owner's** operating account.

Article 11 Personal Property

If applicable, **Owner** shall supply the Personal Property and equipment, if any, listed on Schedule B and **CSCG** shall supply the Personal Property and equipment, if any, listed on Schedule C.

Ownership of equipment shall remain with the party who supplied same and each party shall cooperate in the redelivery of said equipment in good working order and condition, reasonable wear and tear accepted, upon the termination of this Agreement.

11.3 Ownership and proprietary rights to any computer programs supplied by **CSCG** shall remain with **CSCG**. However, all computer data compilations shall be the property of **Owner** and shall be delivered to **Owner** upon the termination of this Agreement.

Article 12 Insurance

12.1 Except as otherwise provided for herein, the cost of all insurance required to be carried hereunder by either party shall be an operating expense of the Facility. The parties anticipate that there will be savings on insurance premiums by adding the Facility to **CSCG's** master policy for the other facilities in its management portfolio. **Owner** will work with **CSCG's** agent to obtain quotes for policy types, coverage's, policy and deductible limits, together with renewal and cancellation terms.

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Owner shall carry the following minimum insurance coverage's:

A.

Real and Personal Property Insurance on the Facility (including contents, loss of income and any other additional perils) against loss or damage in such amounts as may be determined by **Owner**.

CSCG shall carry the following minimum insurance coverage's:

A.

B.

C.

Commercial general liability insurance insuring against claims for injury, death or property damage occurring on, in or about the Facility with single limit, aggregate and excess liability coverage in commercially reasonable amounts and with deductible limits, each as established by **Owner**. All policies of insurance required under this paragraph shall be insured in the name of **CSCG**, with **Owner** and its designees named as additional insured on said policies.

Worker's Compensation and Employers' Liability Insurance, on all personnel employed by **CSCG** at the Facility during the term of this Agreement; with the extent and limitation of said coverage, the cost of said coverage and the company with whom said coverage is secured being approved by the **Owner**.

Employee Theft Insurance with limits and deductible amounts approved by **Owner**.

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Article 13 Special Provisions

Additions, deletions, corrections to and modifications of the terms and conditions contained in the body of this Agreement, if any, are contained in the attached Schedule D.

Article 14
Default

When a party fails to timely make any payment due hereunder or breaches any of the

other material terms hereof, or breaches any of the material terms of any other written contract between the parties, such party shall be deemed in default.

14.2 Upon five (5) days written notice following a default in payment, performance may be suspended until all arrearages have been paid in full.

Upon thirty (30) days notice following notice of suspension of performance or any other default and the defaulting party's failure to cure the alleged default, the non-defaulting party may terminate this Agreement.

14.4 Upon suspension or termination of this Agreement the non-defaulting party may pursue all remedies available to it under the terms hereof and under any applicable law.

Article 15

Applicable Law and Arbitration

15.1. This Agreement shall be construed and interpreted in accordance with the laws of the State where the Facility is located. Any controversy or claim arising out of or related to this Agreement shall be submitted by the parties to arbitration in accordance with the commercial arbitration rules of the American Arbitration Association. Such arbitration shall be conducted in the County where the Facility is located and both parties expressly consent to jurisdiction over them of the State Courts to compel arbitration and to enter any appropriate order or judgment based upon an arbitration award. The parties expressly agree to waive their rights to indirect, special, consequential or punitive damage awards in such proceedings and further agree that the prevailing party shall be entitled to an award of reasonable attorney fees and costs incurred in connection with the arbitration award, the judgment based thereon and all subsequent collection efforts. No arbitration action arising out of this Agreement shall be brought by either party more than one (1) year after the cause of action has accrued.

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Article 16

Indemnification

Each party shall indemnify and hold harmless the other party, its directors, officers, employees, agents, successors and assigns from all damages, costs, expenses and liabilities, including reasonable attorney's fees and disbursements, incurred in connection with the indemnifying party's failure to perform its obligations and duties under this Agreement.

17.1

Article 17

Confidentiality

All knowledge and information acquired during the term hereof concerning each party's affairs and operations shall be deemed confidential. Each party, their officers, directors, partners, employees, affiliates, agents and representatives will keep such information confidential and disclose such information to only those third parties as may be required

confidentiality by **itself**, its agents and representatives.

Article 18

Notices

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19.1

Notices to **the** parties **shall** be **deemed** to **have** been given when mailed by both prepaid **regular** and certified mail or **by an** overnight delivery **service to the** parties **at** the addresses listed herein or such **other** address that **the** parties designate in writing.

Article 19 Additional Provisions

This Agreement (including all Schedules) constitutes the entire understanding between the parties relating to the rights herein granted and the obligations herein assumed and correctly sets forth the rights, duties, and obligations of each party to the other as of the date of this Agreement; provided, however, that this Agreement shall not affect or modify the terms or applicability of any other Agreement regarding other subject matters to which CSCG and Owner are parties. Any prior Agreements, promises, negotiations or representations regarding the subject matter of this Agreement not expressly set forth in this Agreement are of no force or effect. No alteration or variation hereof of any provision shall be valid unless reduced to writing and signed by both parties.

19.2 To the extent that the preprinted terms and conditions of this Agreement conflict

with the terms and conditions of any of the Schedules attached hereto, the terms and conditions of the Schedules shall control.

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This Agreement shall benefit and bind the successors, affiliates and assigns of the parties. No course of dealing between the parties and no failure to exercise any right hereunder shall be construed as a waiver of the right to enforce the terms of this Agreement as written.

This Agreement may not be assigned by either party without the other's prior written consent.

The headings contained in this Agreement are inserted for convenience only and do not constitute a part of this Agreement.

If any provision of this Agreement is determined to be invalid, illegal or unenforceable in any respect as written, such provision shall be automatically modified to the minimum extent necessary to make it enforceable and the provision as so modified shall be enforced, without invalidating the Agreement as a whole.

Each party agrees that no officer, employee, agent or other person authorized to act on behalf of any of them will have personal liability in

connection with this

Agreement or any failure of each party to perform their obligations hereunder.

This Agreement shall not be deemed to create a relationship of partnership or joint venture between the parties.

19.9 Each party is a valid and legally existing entity and each of the undersigned hereby state that he/she has full authority to enter into this Agreement and hereby accepts this Agreement on behalf of the entities identified below.

19.10 This Agreement may be executed in any number of counterparts, including fax or facsimile transmission, and each such counterpart shall be deemed to be an original instrument, all such counterparts together shall constitute one (1) instrument.

DATED this 1st day of December, 2007.

By:

North Shore Ice Arena, LLC

Charles Smith

Title:

Managing Member

North Shore Ice Arena, LLC

Address: P.O. Box 477

Wilmette, Illinois 60091

CLUB SPORTS CONSULTING GROUP

By:

Donald LaPato

Title:

President

Address: 3701 Pin **Oak** Ct.

Lisle **Illinois**, 60532

1. Facility name and address

North Shore **Ice** Arena, LLC

P.O. Box **477**

Wilmette, Illinois 60091

SCHEDULE A

2. Initial Term: Three (3) Years

Commencement Date: August 1, 2008

3. Compensation:

Annual Fee:
$42,000.00

Equal Monthly Payments of: $3,500.00

Payments Due on the 15th of each month.

SCHEDULE B

Personal Property and **Equipment Supplied by Owner**

All inventories taken pursuant to Article 7.5, supra, shall be **attached hereto as Schedule** B.

SCHEDULE C

Personal **Property** and **Equipment Supplied by CSCG**

- None -

SCHEDULE D

Special

Provisions

1. Subject to Owner's approval regarding **the** number**, size** and location, **CSCG may place** one or more **signs** on **or** about **the** Facility **stating that CSCG** is the manager and leasing **agent** for the Facility.